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Case Number: 25STCV09430 Hearing Date: August 13, 2026 Dept: 224

Arslan v. Nehmeh

TENTATIVE RULING

The Motion to Set Aside Default is DENIED. The Motion to Quash is DENIED.

Introduction

On March 28, 2025, Plaintiff Rudolph J. Arslan, in pro per, filed the Complaint in this action against Defendant Andrew Nehmeh, aka Andrew Nehme, an individual.

On May 4, 2026, the Court conducted a default prove-up hearing and took the matter under submission.

On May 11, 2026, the Court entered judgment against Defendant in the total amount of \$88,191.00, consisting of \$86,500.00 in damages and \$1,691.00 in costs.

On June 5, 2026, Plaintiff filed a Motion to Vacate Judgment pursuant to Code of Civil Procedure section 663, set for hearing on June 26, 2026.

On June 15, 2026, Defendant filed the instant Motion to Vacate Default Judgment, Set Aside Entry of Default, and Quash Service of Summons.

No opposition has been filed as of the date of this tentative ruling.

Legal Standard

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1124 (Luri).)

The discretionary portion of section 473, subdivision (b) provides: "The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, "whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).)

Code Civ. Proc., section 473.5 permits the Court to set aside a default and default judgment when the service of a summons has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.)² The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:

- 1) two years after entry of a default judgment against him or her; or
- 2) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5.)

Personal service may be accomplished by personally delivering a copy of the summons and complaint to the person to be served. (Code of Civ. Proc., § 415.10.) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person being served, substitute service may be effected by leaving a copy of the summons and complaint at the person's "dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of . . . a person apparently in charge . . . and by thereafter mailing a copy of the summons and complaint by first-class mail . . . to the person to be served at the place where a copy of the summons and complaint were left." (Code of Civ. Proc., § 415.20, subd. (b).)

A defendant must file any motion to quash service of summons on or before the last day on which the defendant must plead unless the time is extended by stipulation or by a judge's order for good cause. (Code Civ. Proc., section 418.10, subd. (a)(1).) Although the notice of motion must designate a hearing date not more than 30 days after the notice is filed, scheduling a hearing date beyond the 30-day time period does not deprive the court of jurisdiction to consider the merits of the motion. (*Olinick v BMG Entertainment* (2006) 138 CA4th 1286, 1295–1296.)

Motion to Set Aside Entry of Default

Void Judgment

Defendant contends the default and default judgment are void because he was never validly served and the Court therefore lacked personal jurisdiction. The analysis turns entirely on the sufficiency of the December 5, 2025 substituted service.

"The court may set aside a void default judgment at any time under section 473, subdivision (d)." (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 749.)

A proof of service filed by a plaintiff including the declaration of a registered process server gives rise to a presumption of the facts stated therein, thus requiring the defendant to produce evidence that he was not served. (Evid. Code, § 647; American Exp. Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Here, Plaintiff has carried his initial burden. The Proof of Service was executed by Colin Chapman of Getem Process Servers, a registered California process server. It states that on December 5, 2025, at 2:02 p.m., Chapman left the Summons, Complaint, ADR packet, and Civil Case Cover Sheet with "John Doe," a front desk receptionist described as a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served, and that he thereafter mailed copies to that address the same day from Woodland Hills. The accompanying Declaration of Diligence documents ten attempts: seven at 11779 Toyon Drive, Chatsworth, between June 24, 2025 and November 14, 2025, and three at 6320 Canoga Avenue between November 26, 2025 and December 5, 2025. (Nehmeh Decl., Exh. A.)

To rebut this presumption, Defendant submits his own declaration. He states that he was not present at 6320 Canoga Avenue on December 5, 2025; that the address was not his residence, actual office, or usual place of business at that time; that he did not lease space on the 15th floor in December 2025; that the address was "an old business address previously associated with AJN Consulting Group, Inc."; that he did not employ or supervise the receptionist; and that he never authorized any person at that location to accept service on his individual behalf. (Nehmeh Decl. ¶¶ 12-23.) He relies additionally on the AJN bankruptcy docket, which lists the debtor's address as 6625 Ardmore Court, Palmdale, California. (Id., Exh. D.)

The party seeking to defeat service of process must present sufficient evidence to show that the service did not take place as stated. (Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428; cf. People v. Chavez (1991) 231 Cal.App.3d 1471, 1483 ["If some fact be presumed, the opponent of that fact bears the burden of producing or going forward with evidence sufficient to overcome or rebut the presumed fact."]. It is well established that the court is "not required to accept [a] self-serving evidence contradicting the process server's declaration." (Rodriguez v. Nam Min Cho (2015) 236 Cal.App.4th 742, 751.)

Defendant's showing does not carry that burden.

First, Defendant's declaration is internally inconsistent. Paragraph 17 states that Defendant did not lease office space on the 15th floor in December 2025, but paragraph 18 states: "I had an employees working on the 15th Floor of 6320 Canoga Avenue in December 2025." (Nehmeh Decl., ¶¶17-18.) As submitted under penalty of perjury, paragraph 18 affirms a business presence at the service address during the very month of service.

Second, the process server's contemporaneous account independently ties the 15th floor to Defendant. On November 26, 2025, the server advised the front desk receptionist that he was there to serve a summons on Andrew Nehme on the 15th floor. The receptionist telephoned upstairs and was told that process servers are not accepted. That the occupants fielded an inquiry directed to Defendant by name and refused process indicates confirmation that the location was Defendant's place of business and that access was denied by Defendant's own personnel.

Third, the bankruptcy docket reflects only the address AJN Consulting Group, Inc. listed on a Chapter 7 petition filed January 15, 2025. It says nothing about where Defendant individually conducted business eleven months later.

Nor is service defective merely because the recipient was a building front desk receptionist rather than Defendant's own employee. Section 415.20, subdivision (b) requires delivery to "a person apparently in charge" of the office or place of business; it does not require an employment or agency relationship with the defendant, and the phrase is construed liberally. (Bein v. Brechtel-Jochim Group, Inc., supra, 6 Cal.App.4th at pp. 1392-1393 [service on gate guard of secured community sufficient].)

A defendant may not defeat service by making himself inaccessible behind personnel who screen out process servers. (Khourie, Crew & Jaeger v. Sabek, Inc. (1990) 220 Cal.App.3d 1009, 1013; Trujillo v. Trujillo (1945) 71 Cal.App.2d 257, 260.) California courts have long held that a defendant cannot defeat personal service by remaining behind locked doors or attempting to evade or refuse it. (Khourie, Crew & Jaeger v. Sabek, Inc. (1990) 220 Cal.App.3d 1009, 1013; In re Ball (1934) 2 Cal.App.2d 578, 581-582.)

Khourie is controlling of the facts here. The record reflects two prior attempts at the same address were turned away, once by an express refusal relayed from the 15th floor, and the required mailing was thereafter completed. The Court finds that such refusals are evasive in nature and the exact type of evasion of service that Code of Civil Procedure Section 415.20, and Khourie directs that the law will not tolerate.

Defendant has not produced sufficient evidence to rebut the presumption that the December 5, 2025 substituted service took place as stated and complied with section 415.20, subdivision (b). The default and default judgment are therefore not void.

Relief under CCP § 473(d) is DENIED.

Relief Pursuant to CCP § 473.5

Defendant alternatively moves to set aside the entry of default pursuant to section 473.5 of the Code of Civil Procedure.

The motion is timely. Default judgment was entered May 11, 2026, and the motion was filed June 15, 2026, well within two years. Defendant has also satisfied the procedural requirement of section 473.5, subdivision (b) by submitting a proposed Answer as Exhibit E to his declaration.

The motion nevertheless fails on the merits. Section 473.5 requires an affidavit showing under oath that the movant's lack of actual notice in time to defend "was not caused by his or her avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).) Defendant's declaration recites that conclusion at paragraph 40, but the record before the Court will not support it.

As discussed above, the Declaration of Diligence documents seven attempts at Defendant's Chatsworth residence over roughly five months. The process server twice concluded in his contemporaneous entries that Defendant was evading service. Three further attempts at the Canoga Avenue address were met with denial of access, including an express instruction relayed from the 15th floor that process servers are not accepted.

Against that record, Defendant's declaration offers only the assertion that he did not receive the papers and first learned of the action on or about May 15, 2026 by searching his own name online. That assertion, even if credited, does not address the overwhelming evidence of Defendant's efforts to evade service.

Section 473.5 conditions relief on an affirmative showing that the lack of notice was not the movant's own doing. A bare denial of receipt does not discharge that burden where the moving papers themselves attach evidence of sustained evasion.

The Motion to Set Aside the Entry of Default and Default Judgment based on CCP § 473.5 is DENIED.

Relief Pursuant to CCP § 473(b)

Defendant also seeks discretionary relief under section 473, subdivision (b) in the alternative. The application is timely as to the default entered January 28, 2026, but the showing is insufficient.

Section 473, subdivision (b) affords relief where a default is taken against a party through that party's own mistake, inadvertence, surprise, or excusable neglect.

Defendant does not identify any mistake or neglect of his own. His position is that he never received the papers at all – a contention governed by sections 473(d) and 473.5, and rejected above.

To the extent Defendant's failure to appear is characterized as neglect, the diligence record establishes that it was not excusable.

No attorney affidavit of fault has been submitted, so mandatory relief under section 473, subdivision (b) is unavailable.

Relief pursuant to CCP § 473(b) is DENIED.

Motion to Quash Service of Summons

Defendant moves to quash service of the summons and complaint pursuant to Code Civ. Proc., section 418.10 on the same grounds. Under section 418.10, a defendant may move to quash service of summons on the ground of lack of jurisdiction over him, and the Court may extend the time for such a motion for good cause. (Code Civ. Proc., § 418.10, subd. (a)(1).) Because the jurisdictional question presented is coextensive with Defendant's section 473(d) challenge, which may be raised at any time, the Court exercises its discretion to reach the merits notwithstanding that the motion was filed after entry of default.

For the reasons set forth above, Defendant has not rebutted the presumption arising from the registered process server's Proof of Service, and the December 5, 2025 substituted service complied with Code Civ. Proc., section 415.20, subdivision (b). The Court had personal jurisdiction over Defendant when default and default judgment were entered.

The Motion to Quash is DENIED.

Conclusion

Given the foregoing, the Motion to Set Aside Default is DENIED. The Motion to Quash is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.